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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION OF PLAINTIFF ISO
OPPOSITIONS**

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE “SMOKING-GUN” PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” > (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that “credibility” and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense’s non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > “Sure. They were provided by Dolan. He has had them for whatever, sure.” > (RT 7, p. 213, ll. 13–15.)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:
 1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
 2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers’ presence.
 3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal

- knowledge / record basis: I attended the deposition; 911-related testimony was given.
4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
 5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
 6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
 7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
 8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
 9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 admission.
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II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:
“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”
4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:
“All the alleged conduct occurred squarely within the judicial proceeding.”
5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded

allegations were true and assert only legal immunity.

6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: service of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the **September 30, 2022** deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.
9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the ex-

tent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.

10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the “**unknown provenance**” / “**not produced**” position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s “**news to me**” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).
13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and

deferral / limitation rulings on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter's transcripts and minute orders for Case No. CGC-21-594102.

14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel's court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants' exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the 911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying

action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).

22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional principal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
 - a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter's transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).
 - c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.

IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:

1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (**pp. 139–141**) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.
7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)

X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.

X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:

“We have two 911 records that the Defense has been trying to suppress.”

(Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr’g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.
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X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr’g Tr. pp. 291:26–292:7). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294).
32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.
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XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.
34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set aside a judgment procured through fraud on the tribunal as described above.
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XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).

36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.

37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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